

**AGREEMENT FOR CHICAGO SHAKESPEARE THEATER RELATED PARKING AT
NAVY PIER**

THIS AGREEMENT FOR CHICAGO SHAKESPEARE THEATER RELATED PARKING AT NAVY PIER ("Parking Agreement") made as of the 5th day of February, 2016, (the "Effective Date") by and between NAVY PIER, INC., an Illinois not-for-profit corporation ("NPI"), and CHICAGO SHAKESPEARE THEATER, an Illinois not-for-profit corporation ("CST") located at 800 E. Grand Ave., Chicago, Illinois 60611.

Whereas, NPI is a not-for-profit corporation organized under the Not-For-Profit Corporation Law, 805 ILCS 105/101.01 et. seq. of the State of Illinois on January 4, 2011 which manages and operates Navy Pier including the parking venues located thereon; and,

Whereas, CST is a not-for-profit corporation organized under the Not-For-Profit Corporation Law, 805 ILCS 105/101.01 et seq., of the State of Illinois on October 3, 1986 which owns, manages and operates one or more theaters at Navy Pier; and,

Whereas, NPI and CST are parties to certain lease agreements for theaters operated by CST and the Parties desire to set forth the terms under which parking will be provided for CST Theaters.

Now therefore, in consideration of the mutual promises covenants and conditions contained herein, NPI and CST agree as follows:

1. Recitals. The Recitals set forth above are incorporated into and made a part of this Agreement.

2. Definitions. As used in this Lease, the term:

(a) **"1997 Lease Agreement"** means the lease between the Parties dated November 18, 1997 for a theater commonly referred to as the Chicago Shakespeare Theater.

(b) **"2016 Lease Agreement"** means the lease between the Parties dated February 5, 2016 for a theater commonly referred to as the Yard Theater.

(c) **"1997 Lease Agreement Premises"** means the premises leased under the 1997 Lease Agreement for a theater commonly referred to as the Chicago Shakespeare Theater and which includes the **"Main Stage"** and the **"Studio Theater"**.

(d) **"2016 Lease Agreement Premises"** means the premises leased under the 2016 Lease Agreement for a theater commonly referred to as the **"Yard Theater"**.

(e) **"Dedicated Spaces"** has the meaning set forth in Section 4(a)(1).

(f) **"Performance Discount Parking"** has the meaning set forth in Section 4(a)(1).

(g) **"Included Parking Spaces"** has the meaning set forth in Section 4.

(h) **"Parking Garages"** means the two parking venues currently located at Navy Pier which include garages commonly referred to as the **"East Garage"** and the **"West Garage"**.

(i) **"Parking Usage Confirmation"** has meaning as set forth in Section 4(a)(2).

(j) **"Parking Usage Report"** has meaning as set forth in Section 4(a)(2).

(k) **"Party"** or **"Parties"** shall mean NPI and CST, either individually or jointly as the context may indicate.

(l) **"Performance"** means live performances of Shakespearean plays and other theatrical performances, educational and outreach programs, lectures and other programming produced or presented by CST or its licensee at either the 1997 Lease Agreement Premises or the 2016 Lease Agreement Premises all in accordance with applicable laws and ordinances.

(m) **"Yard Theater Permitted Performance Discount Parking Period"** has meaning as set forth in Section 4(a)(1)(i).

(n) **"Term"** shall have the meaning set forth in Section 7.

3. **Implementation Date of Various Sections of this Agreement.** The provisions set forth in Sections 4, 5, 6, and 7 below shall apply from and after the Rent Commencement Date as set forth in the 2016 Lease Agreement.

4. **Discount Parking.** NPI shall make available to CST and CST's patrons certain permanent or Performance specific parking as provided herein:

(a) **Performance Discount Parking.**

(1) Discount: NPI shall make available at a discount from Navy Pier's then advertised rates of not less than thirty percent (30%) (the "Performance Discount Parking") the following number of parking spaces (the "Dedicated Spaces") in the Parking Garages for the use of CST's patrons attending a Performance:

(i) Up to seventy-five (75) spaces for Performances in the Yard Theater from October 1 to March 31 every year, excluding weekends in December and every day between Christmas and the end of Winter WonderFest (the "Yard Theater Permitted Performance Discount Parking Period").

(ii) Up to three hundred fifty (350) for Performances in the Main Stage and/or the Studio Theater.

(2) Process/Reports: CST shall produce a quarterly report (the "Parking Usage Report"), with information for each Performance schedule being provided as soon as it is

available, but no later than the beginning of each season and notify the parking manager or NPI's designee at Navy Pier of the number of parking spaces which CST deems will be required for its scheduled Performances and the time period for which those spaces will be required. At least twenty-four (24) hours prior to each specific Performance, CST will confirm, in writing, the number of parking spaces required for each scheduled Performance, as well as the time period for which those spaces will be required (the "Parking Usage Confirmation"). Should CST require spaces in addition to the number of Dedicated Spaces, persons attending Performances shall be permitted (unless restricted by law), to park in the non-reserved parking areas of Navy Pier (if available) and such parking shall be provided at CST's discounted parking rates. Upon receipt of the Parking Usage Confirmation, NPI will, working with CST, determine a parking plan for each Performance which shall include, for a reasonable period preceding and following the start of each Performance, parking usage for the Dedicated Spaces and the use of a dedicated parking entrance. Dedicated Spaces determined to not be needed by CST patrons for a Performance may be reassigned by NPI for public use at standard charges. Dedicated Spaces determined to be needed by CST patrons for a Performance shall be held for one hour after the Performance begins and then may be reassigned by NPI for public use at standard charges. The Parties will cooperate to facilitate and coordinate the flow of CST's patrons to the designated parking areas.

(3) During the periods outside of the Yard Theater Permitted Performance Discount Parking Period, NPI agrees that, to the extent that, in NPI's reasonable estimation, the Navy Pier parking lots will not be at capacity, CST shall be permitted to utilize the Performance Discount Parking for the use of CST's patrons attending a Performance in the Yard Theater. CST and NPI shall regularly communicate as to whether the Performance Discount Parking will be available outside of the Yard Theater Permitted Performance Discount Parking Period.

(4) For the avoidance of doubt the Performance Discount Parking under this Parking Agreement is aggregated, so that CST shall have the right to utilize any available Performance Discount Parking during a Performance at the Main Stage Theater, the Studio Theater or the Yard Theater.

(b) **Production or Rehearsal Day Discount Parking.** For the period from August 15 through June 15 each year CST shall have the right to use up to fifty two (52) unreserved parking spaces on Navy Pier for such time period as reasonably requested by CST on production and rehearsal days. For the period from June 16 through August 14 each year CST shall have the right to use up to seventeen (17) unreserved parking spaces on Navy Pier for such time period as reasonably requested by CST on production and rehearsal days. CST shall provide NPI with usage requests at least 24 hours prior to the actual usage. The location of the parking spaces shall be reasonably designated by NPI. Parking will be discounted thirty percent (30%) from the then advertised Navy Pier parking rates.

(c) **Calculations:** CST may institute a tiered parking discount provided such discount shall not exceed thirty percent (30%) in aggregate. NPI shall calculate the actual discounts taken in the each calendar year and CST shall reimburse NPI within thirty (30) days of invoice for the value of discounts given in excess of thirty percent (30%) in aggregate in the prior calendar year.

5. Included Parking. CST shall have the right, without charge during the Term of this Parking Agreement and any extensions thereto, to fifteen (15) unreserved parking spaces on Navy Pier (the "Included Parking Spaces"). Not less than five (5) of such spaces shall be located within the Parking Garages with the balance at locations from time to time designated by NPI.

6. Alternative Parking. In the event that NPI's obligation under this Parking Agreement is legally restricted or NPI is otherwise unable to do so for reasons beyond NPI's reasonable control, NPI at its option will a) provide alternative parking with CST's reasonable approval or b) allow rent abatement as mutually agreed by the Parties. Should such restriction on NPI's ability to provide parking as required hereunder continue for a period of twelve (12) months, then CST may terminate the 1997 Lease Agreement, as provided in Section 11.1 thereof, and the 2016 Lease Agreement, as provided in Section 11.1 thereof, upon the giving of sixty (60) days advance notice to the other party.

7. Taxi Service. NPI will coordinate taxi cab access and valet parking at the designated drop-off areas at market rates to be determined by NPI in consultation with CST on all Performance dates. NPI will also coordinate school bus and disabled patron drop-off and loading.

8. Term.

(a) This Parking Agreement shall be in full force and effect from and after the Effective Date set forth above.

(b) It is understood that the Parties intend that this Parking Agreement shall be in effect for a term co-extensive with the 1997 Lease Agreement and the 2016 Lease Agreement. To that end, this Parking Agreement shall expire upon the expiration or termination of the 1997 Lease Agreement or the 2016 Lease Agreement, whichever occurred first.

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IN WITNESS WHEREOF, the parties hereto, intending to be legally bound hereby, have executed this Parking Agreement as of February 5, 2016.

SIGNED:

NAVY PIER, INC. (NPI)

By:



Name: Marilynn Gardner

Title: President/CEO

CHICAGO SHAKESPEARE THEATER (CST)

By: _____

Name: _____

Title: _____

IN WITNESS WHEREOF, the parties hereto, intending to be legally bound hereby, have executed this Parking Agreement as of February 5, 2016.

SIGNED:

NAVY PIER, INC. (NPI)

By: _____

Name: _____

Title: _____

CHICAGO SHAKESPEARE THEATER (CST)

By: Shari Z. Ry

Name: SHARI Z. ROSENBERG

Title: Chair of the Board